

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN.
JUDICIAL DEPARTMENT

ICA No. 188 of 2016

Mustafa Kamal

vs

Multan Electric Power Company Limited & 56 others

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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09.10.2019 Malik Muhammad Ali Dhol, Advocate for appellant.
Ch. Saleem Akhtar Warriach, Advocate for respondents.

Through this Intra-Court Appeal, the appellant has challenged the order dated 07.04.2016 passed by learned Single Judge in Chambers, whereby constitutional petition filed by the appellant, was dismissed.

2. Brief facts of the case are that the appellant, in response to advertisement published by the respondents, applied for the post of Meter Reader against quota reserved for children of employees. After passing NTS test, respondent No.6 issued interview letter to the petitioner wherein the petitioner obtained full marks but the respondents did not appoint him against serving employee's son quota and appointed the children of employees who died during service, died after retirement and retired employee's son.

3. It is contended by learned counsel for the appellant that being son of serving employee, the appellant was entitled for appointment but he has not been appointed due to *mala fide* intention; that the learned Single Judge in Chambers has failed to appreciate real controversy in

issue, therefore, the impugned order is liable to be set-aside.

4. On the other hand, learned counsel appearing on behalf of the respondents has defended the impugned order and prays for dismissal of this appeal.

5. **Heard.** Record perused.

6. The claim of the appellant is that he applied for appointment against 20% quota reserved for children of in-service employees of the respondent department and his case was not properly considered whereas private respondents No. 8 to 57 have been appointed against the said quota which is based on *mala fide* and has caused discrimination to the appellant. Perusal of notification dated 08.04.2004, through which said quota was revived for the posts in BPS-1 to 9 in all categories for children of WAPDA employees shows that the quota was reserved for the candidates in the following order of merit:

"1. It has been decided by the Authority to revive 20% quota of the posts in BPS-1 to 9 in all categories for the children of WAPDA employees. Recruitment against the said quota will be made on contract basis as and when posts are available, in the following order of merit:

- a. A child of employee who died due to electric shock or injury causing death while performing official duty.*
- b. A child of employee who became disabled due to electric shock or injury causing disability while performing official duty.*
- c. A child of employee who died or incapacitated due to some other reasons during service.*
- d. A child of deceased retired WAPDA employee.*
- e. A child of retired employee.*
- f. A child of employee in service whose child has not been recruited before under*

employee children quota (WAPDA employees who resigned from service after rendering 15 years or more service, shall also be allowed to avail employees children quota under this category.

2.
3. *Qualification/standard for recruitment i.e. age, educational technical and physical, shall under no circumstances, be relaxed in respect of children of WAPDA employees. Trade test will be held for BPS-5 to 9 category posts where applicable. The merit of the candidates who qualify the test is to be determined independently according to priorities mentioned in Para-1 and/laid down in O.M. No.DG(S&GA)/D (Rules)/ 07453/ 30/ III/ 55906 dated 19.11.2003.*
4. ...
5. ...
6. ..."

7. The appointment against 50 reserved seats was to be made on the basis of *inter-se* merit of children of employees to be fixed keeping in view the priorities mentioned in para-1 of the afore referred letter wherein the children of deceased and retired employees mentioned in categories "a" to "e" have been given priority over the in service employees or employees who resigned from service after rendering 15 or more years of service provided in category "f". The appellant does not fall in any of the categories "a" to "e" mentioned above that were to be given priority over category "f", therefore, he was not entitled to be considered for appointment alongwith or in preference to the said category and had to be considered when the candidates in the afore referred categories had been exhausted. Although the appellant claims that said fixation of quota was discriminatory as it does not properly cater to the category of children of

serving employees, the notification challenged by the appellant is based on a policy decision by the respondent department which cannot be called in question through constitutional jurisdiction of this Court, unless the same is violative of the Constitution, fundamental rights or law, suffers from some illegality, arbitrariness or established *mala fides*. Reliance in this behalf is placed on M/s. Dossani Travels (Pvt) Limited and others vs. M/s. Travels Shop (Pvt) Limited and others (PLD 2014 S.C. 01) and Human Rights Case No. 14392 of 2013 (2014 SCMR 220). However, the appellant has failed to point out any illegality, *mala fide* or that the policy is against the law.

8. As regards the case of discrimination, the respondents are entitled to make a policy and fix priority of candidates to be considered for appointment by making reasonable classification on the basis of intelligible differentia. Reliance is placed on Secretary Economic Affairs Division, Islamabad and others vs. Anwarul Haq Ahmed and others (2013 SCMR 1687) and I.A Sharwani and others vs. Govt. of Pakistan through Secretary, Finance Division, Islamabad and others (1991 SCMR 1041). In the present case, a reasonable classification has been made by giving priority to the children of employees who no longer remain in service of the respondent department over the children of serving employees which itself is made on the basis of intelligible differentia and reasons for making such classification are beyond the scope of determination by this Court as said classification is not in conflict with any prevailing law including the Constitution of Pakistan.

The father of the appellant at the time of appointment process was serving in the respondent department whereas the respondent Nos.8 to 57 who have been appointed are all children of deceased or retired employees of the respondent department. The appellant despite being confronted has not been able to point out that any of the respondents appointed by the department are children of serving employees, therefore, appointment of the respondents cannot be treated as discriminatory to the appellant. It is also claimed that the appointed respondents did not go through the process whereas he had cleared the entire process but he has not been able to point out any of the candidate who was appointed without due process.

9. At this stage, learned counsel for the appellant further argues that his case should have been considered for appointment against 198 seats on merit. However, neither in his petition nor in the grounds of appeal the appellant has mentioned that he had applied for appointment against seats fixed for merit. Consequently, he could not claim to be appointed against the said seats. There is no illegality in the impugned order passed by the learned Single Judge in Chambers warranting interference by us.

10. For what has been discussed above, this appeal being devoid of any merits is *dismissed*.

(JAWAD HASSAN)
JUDGE

(MUZAMIL AKHTAR SHABIR)
JUDGE